

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO.
 Accused Ajit Singh Rathore (**150**), Ramlal Arya (**158**), Parveen Kumar (**161**), Nimesh Kumar Ramesh Soni (**182**), Ritu Raj Singh (**183**), Shashank Singh Rathore (**185**), Dushyant Singh Rathore (**184**), Jitesh Kumar Parmar (**186**) and Damyanti Bhandari (**179**) in person being on bail.

Accused Hemant Kumar Jain (No. **159**) (on bail) not present but represented by Ms. Sunita Saini, Advocate.

Accused Akshat Singh (No. **136**) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Shiv Raj Sharma (No. **160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Naveen Kumar (**139**) on bail represented by Sh. Abhimanyu Dhawan, Advocate.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Hanumangarh Jail.

Accused nos. **114,120,123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Jodhpur Jail.

Accused (No. **187**) Mahesh Kumar Tak absent.

Today the case is listed in terms of order dated 02.07.2022 for the purpose as under:

Sr. Nos.	Accused Nos.	Further stage/proceedings
1.	Accused Nos. 136	Consideration
2.	Accused Nos. 139, 162, 171, 173, 163, 160	Appearance as well as for consideration.
3.	Accused No. 187	Non-bailable warrants
4.	Accused Nos. 150, 158, 159, 161, 179, 182, 183, 184, 185	Appearance. They shall cooperate with prosecution as approvers

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

5.	Accused Nos. 130, 114, 120, 122, 123, 125, 126, 131, 134, 142,	They are in custody and produced through VC and the case is adjourned for their production through VC
6.	Accused Nos. 113, 117	Production warrant
7.	Accused Nos. 119, 135, 143	Consideration on the point of declaration of PO

An application seeking exemption from personal appearance on behalf of accused Hemant Kumar Jain (159), filed. Heard. In view of grounds mentioned in the application the same is allowed and the accused Hemant Kumar Jain (159) is exempted from personal appearance for today only.

Accused No. 136 (Akshat Singh) and No. 139 (Naveen Kumar) have been granted bail vide orders dated 20.07.2022 and 19.07.2022 respectively. To come up on **30.08.2022** the date already fixed.

Production warrant issued against accused Rajiv Kumar Rana (No. 177) has returned back with request to produced the accused through video conferencing by the District Jail Jaipur. Accordingly accused Rajiv Kumar Rana has been produced through video conferencing. Thereby, accused Rajiv Kumar Rana (177) is taken into custody in the present proceeding. Intimation be also sent to Jail Authority in this regard. Accused Rajiv Kumar Rana (177) be produced on **30.08.2022**, through video conferencing.

Accused namely Mukesh Modi (113) not produced by the Jail Authority by the District Jail Jaipur. The concerned Jail Authority has informed that the aforesaid accused is confined in District Jail Hanumangarh Rajasthan. Hence, production warrant of accused Mukesh Modi (113) be issued to District Jail Hanumangarh Rajasthan for producing through video conferencing on **30.08.2022**.

Accused namely Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) have not been produced through Video Conferencing from Jodhpur Jail. Let, the production warrants of

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

accused Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for **30.08.2022** for appearance of accused through VC.

Warrant of arrest issued against accused namely **Mahesh Kumar Tak (187)** has not been received back either executed or unexecuted. Let fresh warrants of arrest be issued against accused Mahesh Kumar Tak (**187**) for **30.08.2022** and the same be got executed through special messenger.

Learned Special Public Prosecutor has further informed that there are five accused persons namely **Parveen Kumar (161)**, **Nimesh Kumar Ramesh Soni (182)**, **Ritu Raj Singh (183)**, **Shashank Singh Rathore (185)** and **Jitesh Kumar Parmar (186)**, who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on **30.08.2022** for recording of their respective statements as approvers. Learned Prosecutor is directed to update himself with latest law and procedure to assist the Court in respect of recording statements of approvers.

Today the case is also listed for consideration regarding declaring accused Vinay Kumawat (119), Siddhartha Chauhan (135), Sudhir Punia (143), Peeyush Aggarwal (173), and Shiv Raj Sharma (**162**) as proclaimed persons.

As far as accused Vinay Kumawat (**119**), Sudhir Punia (**143**) Siddharth Chauhan (**135**) are concerned neither they have come present today nor any intimation on their behalf have been received. Learned Prosecutor submits that these above-said accused have been deliberately avoiding their presence before this Court. Further, no interim relief has been ordered qua these

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

accused by the Hon'ble High Court. Hence, the above accused may be declared proclaimed person in terms of order dated 25.03.2022.

Heard. It is admitted fact that vide order dated **08.09.2021** proceedings under Section 82 Cr.P.C. against accused Vinay Kumawat (119) and Sudhir Punia (143) were initiated and statement of executing officials were got recorded on **07.05.2022** and since then the case was adjourned for presence of accused Vinay Kumawat (119) and Sudhir Punia (143) but they did not turned up so far. I am satisfied that presence of accused Vinay Kumawat (119) Sudhir Punia (143) cannot be secured through ordinary process. Case called several time since morning but neither the accused accused Vinay Kumawat (119), Sudhir Punia (143) nor anyone on their behalf have appeared before the Court. It is already 02:40 PM. Waited sufficiently. Further wait is not justified. Hence this Court hereby declare the accused **Vinay Kumawat (119) and Sudhir Punia (143) as "Proclaimed Person"**. An intimation in the form of separate letters along with copy of this Order in this regard be sent to SHO concerned as well as to the DCP (HQ), Gurugram for taking appropriate action under Section 174-A of IPC against the proclaimed person in accordance with law.

As far as accused Siddharth Chauhan (135) is concerned, counsel appearing on behalf of accused has placed on record copy of order dated 01.07.2022, passed by Hon'ble High Court in CRM-M-27904-2022 (O&M) and has prayed that PO proceeding may be adjourned qua accused Siddharth Chauhan (135). Learned Prosecutor submits that no interim relief whatsoever has been granted qua accused Siddharth Chauhan (135) and his bail application stands dismissed upto Hon'ble High Court.

Heard. It is admitted fact that bail application of accused has been dismissed by the Hon'ble High Court and no interim relief has been granted in CRM-M-27904-2022 (O&M). The Hon'ble High Court vide order dated 01.07.2022 has pleased to pass order as under:

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

Learned senior counsel for the petitioner has relied upon the order dated 24.05.2022 passed in CRM-M-20279-2020 and some connected matters, vide which PO proceedings qua the petitioner(s) were adjourned beyond the date fixed by this Court.

Learned Sr. Penal counsel for SFIO has raised a preliminary objection that the anticipatory bail of the petitioners stands dismissed upto the Hon'ble Supreme Court in the year 2019 and now it will be a debatable issue regarding maintainability of the present petition.

In view of the above, let this case be listed before the same Bench, which has passed the order dated 24.05.2022, after soliciting appropriate orders from Hon'ble the Chief Justice.

Further, it is also admitted fact that the Hon'ble High Court has been pleased to list the case before the same Bench, by which the order dated 24.05.2022 was passed. As the matter is pending before the Hon'ble High Court and it would be fitness of things and in the interest of justice qua accused Siddhartha Chauhan, the matter for declaration of P.O. is adjourned till next date. Now to come up on **30.08.2022**, the date already fixed for awaiting further orders of Hon'ble High Court as well as for appearance of accused Siddharth Chauhan (**135**). Learned counsel for accused and learned Sr. Prosecutor for SFIO is directed to produce the further order of Hon'ble High Court on the date fixed.

An application under Section 317 Cr.P.C. for dispensing with the personal appearance of the applicant/accused and permitting him to cause appearance by his pleader has been filed on behalf of accused Shiv Raj Sharma (**162**). Copy of application supplied. Learned counsel for accused Shiv Raj Sharma submits that he has filed a petition before the Hon'ble High Court bearing CRM-M-27409 of 2022 for becoming approver in this case and same

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

was listed on 29.07.2022 and is next listed on 29.09.2022. Heard. Keeping in view the pendency in Hon'ble High Court, PO proceedings qua accused Shiv Raj Sharma (162) are adjourned till further orders. Now to come up on **30.08.2022** for awaiting orders from Hon'ble High Court.

An application seeking exemption from personal appearance of accused Peeyush Aggarwal (173), has been filed by his wife namely Anupama Aggarwal. It has been further prayed that he may be given sufficient to come present before this Court and has accordingly prayed that he may not be declared as proclaimed person. Learned Prosecutor submits that no interim relief whatsoever has been granted qua accused Peeyush Aggarwal (173) by any Hon'ble Court, hence, accused Peeyush Aggarwal (173) be declared as proclaimed person. Heard. The counsel for the accused along-with wife of the accused have stated before this Court that accused willing to appear personally before this Court within a period of one week. Keeping in view the objective of the proclamation proceedings i.e. appearance of the accused person, and further keeping in view the submissions made by the wife of the accused, the accused Peeyush Aggarwal (173) is given time to appear personally before this Court failing which this Court shall proceed further with proclamation proceeding against the accused. Now to come up on **30.08.2022** the date already fixed for presence of accused Peeyush Aggarwal (173).

Date of order: 27.07.2022

(Dr. Virender Parshad)
Additional Sessions Judge,
Gurugram.
(UID No. HR0082)